Resolution No. 7397

Resolution to Authorize Fact-finding Related to Use of Certain Non-PPS-approved Messaging Platforms

RECITALS

A. The Board of Education has reviewed a news report alleging that some PPS employees have used the Signal messaging application to communicate about PPS business. Signal is not a PPS-approved platform for conducting official PPS communications.

B. Use of non-approved messaging platforms by a PPS employee for some purposes would not necessarily violate PPS policy or state law.

C. It is in the best interest of PPS to (1) understand whether, how, and why Signal was used by PPS employees; and (2) determine whether any Signal messages sent or received by PPS employees were public records and, if so, whether they are preserved within the application or can otherwise be recovered.

D. In light of the proliferation of messaging applications, it is in the best interest of PPS for the PPS Board and administration to consider whether any changes to PPS policies and administrative guidance are advisable to provide guidance to PPS employees.

RESOLUTION

The Board of Education authorizes and directs the PPS General Counsel to work with outside legal counsel to initiate fact-finding with the following scope and to provide the results of the fact-finding to the Board:

1. Determine whether Signal or other similar applications are used by PPS management employees for matters relating to PPS, including the topics and purposes of such communications.

2. Determine whether any PPS employees retained information that was transmitted through Signal or similar application and whether that information can be collected and preserved under applicable document retention standards.

3. Such other matters as follow from the information gathered that relate to compliance with PPS policies and applicable law, or which would inform potential improvements to PPS policies or administrative guidance.